

25NWLC23190 25NWLC23190

County: los-angeles

Division: Civil Law and Motion

Department: Y

Hearing date: 2026-07-01

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Case Number: 25NWLC23190 Hearing Date: July 1, 2026 Dept: Y

25NWLC23190: CROWN ASSET MANAGEMENT LLC vs ADRIAN MARTINEZ

Tentative Ruling:

The Court has read and reviewed the moving papers filed by Plaintiff Crown Asset Management LLC ("Plaintiff") in support of its Motion for Judgment on the Pleadings.

The Court notes that on May 11, 2026, the date set for trial in this matter, counsel advised that this case had settled and based on that representation, the Court granted a trial continuance from May 11, 2026 to August 5, 2026. Rather than submit a stipulation regarding settlement as expected by the Court, Plaintiff has filed this motion without properly meeting and conferring with Defendant Adrian Martinez ("Defendant").

Code of Civil Procedure section 439 requires parties to meet and confer in person, by telephone, or video conference at least 5 days before filing a motion for judgment on the pleadings. The parties must discuss whether the issues to be raised by the motion can be resolved to avoid court intervention, and the moving party must file a declaration detailing this compliance.

Here, Plaintiff attempted to meet and confer with Defendant in July 2025 – almost a year ago. Plaintiff has also failed to provide a copy of the meet and confer letter referenced in the supporting attorney declaration. The Court finds that the attorney declaration submitted by Plaintiff does not demonstrate that Plaintiff has satisfied the meet and confer requirement set forth in Code of Civil Procedure section 439.

The Court will grant a continuance to cure the defect in the meet and confer process and requests that Plaintiff file a supplemental declaration pursuant to Code of Civil Procedure section 439 detailing its meet and confer efforts.

Plaintiff's motion will be continued to July 31, 2026 at 8:30 a.m. in Dept. Y.

The current trial date of August 5, 2026 remains on calendar.

Plaintiff to give notice.